

Managed Cloud Services Agreement

Order Form and Service Terms | Agreement No. **MCA-2026-0141** | Date: 14 October 2026

1. Parties

Provider	Nimbus Cloud GmbH, Musterstrasse 12, 10115 Berlin, Germany (fictional company)
Customer	Brightwave Retail GmbH
Registered address	Hafenstrasse 48, 20457 Hamburg, Germany
Customer contact	Jonas Weber, IT Director, jonas.weber@brightwave-retail.example
Provider account manager	Sara Klein, sara.klein@nimbus-cloud.example

2. Order details

Product	Nimbus Experience Platform (XP), Managed Cloud Standard
Hosting region	EU (Frankfurt)
Environments	Production Staging Development
Disaster recovery option	Warm standby (RPO 1 hour, RTO 4 hours)
Contract start date	1 November 2026
Initial term	36 months
Billing	Annually in advance
Annual subscription fee	EUR 96,000

3. Service levels

The Provider will operate the environments listed in Section 2 as a managed service. Production environments are covered by a monthly availability target of 99.9%. Non-production environments are provided on a best-effort basis. Support is available 24/7 for Priority 1 incidents and during business hours (08:00 to 18:00 in the hosting region) for all other requests.

4. Disaster recovery

The Provider will maintain a warm standby copy of the Production environment in a secondary EU region. In a declared disaster, the Provider will restore service within the recovery time objective stated in Section 2.

5. Activation and provisioning

Following signature, the Provider will activate the contract, create the billing agreement and the cloud subscriptions for each environment, and send a welcome email to the Customer contact. Provisioning of application sets is requested separately by the Customer after activation.

6. General terms

This Agreement renews automatically for successive twelve-month periods unless either party gives ninety days' written notice before the end of the current term. Fees are payable within thirty days of invoice. This Agreement is governed by the laws of the Federal Republic of Germany.

7. Signatures

Signed for the Provider	Lena Hoffmann, Head of Sales, Nimbus Cloud GmbH Date: 14 October 2026
Signed for the Customer	Jonas Weber, IT Director, Brightwave Retail GmbH Date: 14 October 2026

All names, companies and figures in this document are fictional.